

BEFORE THE FEDERAL MARITIME COMMISSION

SAMSUNG ELECTRONICS AMERICA, INC.

Complainant,

v.

SM LINE CORPORATION

Respondent.

Docket No. 23-01

DECLARATION OF CHIARA KALOGJERA-SACKELLARES

CHIARA KALOGJERA-SACKELLARES hereby declares as follows:

1. I am an attorney at Holland & Knight LLP (“H&K”), counsel for Complainant Samsung Electronics America, Inc. (“Complainant”) in the above-captioned matter.
2. I am a member in good standing of the Bar of New York and have filed a notice of appearance in this proceeding.
3. I have personal knowledge of the facts set forth in this Declaration and am fully familiar with the proceedings in this case.
4. Attached hereto as **Exhibit A** is a true and correct copy of Complainant’s Notice of Deposition of SM Line Corporate Designee dated January 19, 2024 sent on November 22, 2023 via email to Respondent SM Line Corporation (“SM Line”) Counsel.
5. Attached hereto as **Exhibit B** is a true and correct copy of excerpts from the Rough Deposition Transcript of K.K. Choi, deposed as the corporate designee under 143(b)(6), which took place on January 19, 2024.

6. Attached hereto as **Exhibit C** true and correct copy of excerpts from the Rough Deposition Transcript of K.K. Choi, deposed in his individual capacity, which took place on January 18, 2024.

7. Attached hereto as **Exhibit D** is a true and correct copy of the email from SM Line Counsel to SEA Counsel on January 25, 2024 attaching 17 pages of various documents that Mr. K.K. Choi had in his possession during his 143(b)(6) deposition, which SM Line refused to share during the deposition upon demand.

8. Attached hereto as **Exhibit E** is a true and correct copy of 143(b)(6) Deposition exhibits, Exhibits 7-9, which were introduced during the 143(b)(6) Deposition, on January 19, 2024.

9. Attached hereto as **Exhibit F** is a true and correct copy of the emails exchanges between SM Line Counsel and SEA Counsel beginning November 17, 2023 to January 10, 2024 requesting prior versions of the SM Line Demurrage and Detention Management Policy and Procedure.

10. Attached hereto as **Exhibit G** is a true and correct copy of the email dated January 19, 2024, 5:05 PM from SM Line Counsel to SEA Counsel providing a link to prior versions of the Demurrage and Detention Management Procedure.

11. Attached hereto as **Exhibit H** is a true and correct copy of Exhibit 2 to the deposition K. K. Choi in his individual capacity, on January 18, 2023, Mr. K.K. Choi's LinkedIn Profile.

Dated: January 28, 2024

/s/ Chiara Kalogjera-Sackellares
Chiara Kalogjera-Sackellares
Holland & Knight LLP